Syllabus

ZORN *v.* LINTON

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE SECOND CIRCUIT

No. 25–297. Decided March 23, 2026

Shela Linton joined a protest at the Vermont state capitol building to demand universal healthcare, and was among the protesters who refused to leave when the capitol closed. As the protesters sat on the floor of the legislative chamber with their arms linked, police officers explained that they would arrest the protesters for trespass if they did not leave. After removing more than a dozen protesters one by one, the officers turned to Linton. Sergeant Jacob Zorn crouched down to speak with her, but she remained seated with her arms interlocked with those of her fellow protesters. As Linton passively resisted, Zorn unlinked her arm from another protester's, put it behind her back in a rear wristlock, and twisted her arm. Zorn repeatedly implored her to "please stand up." App. to Pet. for Cert. 47–48. After Linton refused, Zorn told her that he would ask "one more time" and then would use more pain compliance. *Id.*, at 48. Linton again refused, so Zorn placed pressure on her wrist and lifted Linton up by her underarm. Once on her feet, Linton continued to jerk her arms and fell back to the floor. Zorn asked her to stand up again, and when she did not, three officers picked her up by her arms and legs and carried her outside. Linton alleged resulting physical and psychological injuries, and sued Zorn under Rev. Stat. § 1979, 42 U. S. C. § 1983, claiming that Zorn violated her Fourth Amendment right against excessive use of force. The District Court granted summary judgment for Zorn after concluding that he was entitled to qualified immunity. The District Court reasoned that it was not clearly established at the time of the encounter that, in these circumstances, lifting Linton while putting pressure on her wrist violated the Fourth Amendment. The Second Circuit reversed. It held that its decision in *Amnesty America* v. *West Hartford*, 361 F. 3d 113, clearly established that the use of a rear wristlock on a protester passively resisting arrest constitutes excessive force, and remanded for a jury trial against Zorn.

Held: Because the Second Circuit failed to identify a case where an officer using a routine wristlock on a protester after issuing a verbal warning, without more, was held to have violated the Constitution, Zorn was entitled to qualified immunity. Government officials enjoy qualified immunity from suit under § 1983 unless their conduct violates clearly es-

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